

2:00 PM

LINE 5

24-CIV-00280

INOCENCIO SANCHEZ VS. TERESA GODINEZ VIDRIO

INOCENCIO SANCHEZ
TERESA GODINEZ VIDRIO

MARIO FAUSTO
DYLAN HACKETT

DEFENDANT'S OBJECTIONS TO TENTATIVE DECISION AND PROPOSED STATEMENT OF DECISION

TENTATIVE RULING:

Defendant has requested oral argument on this court's tentative decision and proposed statement of decision. Therefore, the parties are to APPEAR. Zoom appearances are allowed.

2:00 PM

LINE 6

24-CIV-02224

CAROLYN DIXON, ET AL. VS. CYNDA WATKINS, ET AL.

CAROLYN DIXON
CYNDA WATKINS

J EDWARD KERLEY
KIRILL DEVYATOV

PLAINTIFF'S MOTION FOR BIFURCATION OF TRIAL ON PLAINTIFFS' EIGHTH CAUSE OF ACTION FOR DECLARATORY RELIEF

TENTATIVE RULING:

Plaintiffs Carolyn Dixon's and David Bassi's motion for an order bifurcating trial to decide the eighth cause of action in plaintiff's First Amended Complaint ("FAC") filed May 22, 2024, is DENIED.

Background

Plaintiffs' home was burned in a fire in late 2020. Until late spring of 2024, plaintiffs' insurer Defendant State Farm was investigating, making adjustments for and payments on the claim plaintiffs had filed against their insurance policy with defendant. It is undisputed that the policy contains a one-year limitations to sue provision which would be tolled from the date of loss and notification until defendant provided unequivocal written notice it would pay no further benefits under any coverage provided by the policy. The matter has been set for jury trial in August 2027.

The instant motion, similar to plaintiffs' motion for summary adjudication, requests that the Court bifurcate trial for a first phase decision regarding the FAC's eighth cause of action for declaratory relief under Code of Civil Procedure section 598 and enter a ruling as to the FAC's cause of action for declaratory relief because it is an equitable question thus for the bench, not a jury to decide. In so doing the Court would simultaneously sustain or overrule defendants' affirmative defense based on the statute of limitations.

Defendant State Farm opposes, as they did plaintiff's motion for summary adjudication, contending that the question before the Court— whether defendants' January 12, 2023 letter was an unequivocal denial or not based on the meaning of the word "claim" as it is used (and thus ending the tolling period)—is a question of fact that a jury, not judge, should decide under *Stofer v. Shapell Industries, Inc.* (2015) 233 Cal.App.4th 176, 189 and related cases.

Legal Standard

Under Code of Civil Procedure section 1048, subdivision (b), a judge may order a separate trial of any cause of action asserted in a complaint or a cross-complaint, or any separate issue. "A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed
